FIELDWORK REPORT

ON

"A STUDY IN MYMENSINGH DISTRICT ON THE ROLE OF CONCERNED AUTHORITIES PRESCRIBED IN THE CHILDREN ACT, 2013: LAW AND PRACTICE"

SUBMITTED BY

Roll No.**20153552**

Reg. No. 9210

Session: 2019-2020

Department of Law and Justice

Jatiya Kabi Kazi Nazrul Islam University

SUBMITTED TO

Department of Law and Justice

Jatiya Kabi Kazi Nazrul Islam University

Trishal, Mymensingh

AUGUST 2023

DECLARATION

I, Md. Abir Hossain Shihab, solemnly declare that the academic work presented in this Field work report, entitled "A Study in Mymensingh District on the Role of Concerned Authority Prescribed in the Children Act, 2013: Law and Practice," is entirely my own. This work represents the culmination of my independent scholarly endeavors conducted under the supervision of our course teacher, honorable Md. Asaduzzaman (Newton) sir, for the Department of Law and Justice, Jatiya Kabi Nazrul Islam University.

I acknowledge that all sources of information and materials used in this research paper have been duly acknowledged and cited in accordance with the academic standards and referencing style required by the university. Any direct quotations, paraphrased content, or ideas from external sources have been properly attributed to their respective authors.

I affirm that this research paper has not been submitted, in part or in full, for the fulfillment of any other academic qualification at any other institution. I understand that any breach of academic integrity, including plagiarism, misrepresentation, or fabrication of information, undermines the core values of intellectual honesty and scholarly rigor.

By appending my signature below, I confirm that I have read and understood the significance of the declarations made herein and accept the responsibilities associated with upholding the principles of academic integrity.

……..

Date and Signature

ACKNOWLEDGEMENT

I would like to express my sincere gratitude to all those who played a role in the successful completion of my field work report titled "**A Study in Mymensingh District on the role of the Concerned Authority Prescribed in the Children Act, 2013: Law and Practice.**" This endeavor required the guidance, support, and contributions of many individuals and entities.

I extend my heartfelt thanks to our field work team supervisor, the honorable **Md. Asaduzzaman (Newton)** sir, Assistant Professor, whose expert guidance, insightful suggestions, and continuous encouragement were instrumental in shaping the direction and quality of this study.

I am deeply appreciative of the District Probation Officer of Mymensingh District, who graciously shared their time and knowledge during my field visit. Their expertise provided invaluable insights that enriched my understanding of the subject matter.

I would like to acknowledge the participants who willingly participated in interviews, and discussions, contributing essential data and perspectives that formed the foundation of this research.

I am grateful to my teammates for their discussions, feedback, and overall support, which helped refine the research objectives and methodologies.

I want to express my deep appreciation to my family and friends for their unwavering support, understanding, and encouragement throughout this research journey.

ABSTRACT

This field research delves into the operational dynamics and effectiveness of prescribed authorities under the Children Act, 2013, in Mymensingh District, Bangladesh. The study examines the roles of Probation Officers, Child Affairs Desks at police stations, and Child Development Centers (CDCs) in safeguarding child welfare and protection. Investigating the implementation of the Children Act, the research uncovers significant insights into the challenges faced by these key authorities. Findings reveal a disparity between legal stipulations and actual resources available to designated officers at the District and Upazila levels. Despite high caseloads involving children, a lack of resources, staff, and proper guidelines hinders comprehensive support and legal representation for children in conflict with the law. Challenges in functioning, such as logistical constraints and external influences, impede Child Affairs Desks' effectiveness at police stations. The absence of a dedicated Children's Court in Mymensingh District causes delays in legal proceedings, impacting children's rights. Child Development Centers encounter challenges including inadequate resources, subpar facilities, and reports of abuse, leading to restricted access to education and violation of fundamental rights. The research underscores the significance of these prescribed authorities in safeguarding children's well-being. In conclusion, the study emphasizes the pivotal role of prescribed authorities under the Children Act, 2013, while revealing the challenges they face. The research underscores the need for improved resource allocation, clear guidelines, training, and collaboration among authorities to enhance the child protection system. Addressing these challenges is essential for ensuring comprehensive child welfare and development in Mymensingh District.

Contents

CHAPTER 1 5
Introduction 1
1.1 Background of the study 1
1.2 Objective of this Study 1
1.3 Limitations of the study 2
CHAPTER 2 3
Literature Review 3
2.1 Historical Background of Children Act, 2013 3
2.2 Salient Features of this Act 3
2.3 Concerned authorities under The Children Act, 2013 5
CHAPTER 3 7
Methodology 7
3.1 Research Aim 7
3.2 Research Approach 7
3.3 Research Team 7
3.4 Participants and Site Selection 7
3.5 Data Collection Methods 7
3.6 Ethical Considerations 7
3.7 Data Analysis 8
3.8 Limitations 8
CHAPTER 4 9
Findings of This Study 9
4.1 Role of Prescribed authorities under Children Act, 2013: Law vs Reality 9
4.2 Probation officer 9
4.3 Operations and responsibilities carried out by Probation officer in Mymensingh 11
4.4 Challenges faced by the Probation Officer 12
4.5 Child Affair Desk at Police Station 13
4.6 Challenges Faced by Children Affair Desk 15
4.7 Role of Children Court in Mymensngh District: 15
4.8 Child Development Center in Mymensingh 16
CHAPTER 5 20
Conclusion 20
5.1 Summary of the Findings 20
5.2 Recommendations 21

CHAPTER 1

Introduction

1.1 Background of the study

Children are the most vulnerable members of our society, deserving of special care, protection, and support to ensure their well-being and development. Recognizing this imperative, nations around the world enact comprehensive legal frameworks to safeguard the rights of children and address the unique challenges they may face. In Bangladesh, the Children Act, 2013, stands as a pivotal legislative milestone, aiming to protect the rights and welfare of children across the country.

This study delves into the critical role played by the Concerned Authority, as prescribed in the Children Act, 2013, within the context of Mymensingh District, Bangladesh. The Concerned Authority, vested with significant responsibilities, functions as a crucial instrument in implementing the provisions of the Act and ensuring the effective delivery of child protection services.

In conclusion, this research aspires to advocate for a robust, child-centric legal framework that aligns with the principles of the Children Act, 2013, and empowers the Concerned Authority and other social workers to act decisively in safeguarding the rights and well-being of the youngest members of our society. By doing so, we take a significant step towards ensuring a safer, nurturing environment for all children in Mymensingh District and beyond.

1.2 Objective of this Study

The primary objective of this research is to comprehensively investigate and evaluate the role of the Concerned Authority prescribed in the Children Act, 2013, and its practical implementation in Mymensingh District, Bangladesh. The study aims to achieve the following specific objectives:

1. Assessing the Responsibilities and Functions of the Concerned Authority
2. Evaluating the Effectiveness of Child Protection Efforts
3. Identifying Implementation Challenges
4. Examining Stakeholder Perspectives
5. Proposing Policy Recommendations.

1.3 Limitations of the study

The study has some significant limitations that need to be acknowledged. Firstly, its scope was limited to Mymensingh District, which may restrict the generalizability of the findings to other regions in Bangladesh. As a mixed-method approach was employed, subjectivity in data collection and analysis could have influenced the results. Difficulties in accessing certain stakeholders and obtaining their cooperation might have led to data gaps. Additionally, the reliance on secondary data sources may have introduced inaccuracies or incomplete information. The research being conducted by student researchers may have impacted the depth and rigor of the study. Lastly, response bias and self-reporting inaccuracies during the questionnaire phase might have affected the validity of the results. Despite these limitations, efforts were made to address them, and the study's findings provide valuable insights into the role of concerned authorities in implementing the Children Act, 2013, in Mymensingh District.

CHAPTER 2

Literature Review

2.1 Historical Background of Children Act, 2013

The first expression of international concern about the protection of children came in 1923 through "Geneva Declaration" under the aegis of League of Nations. After the establishment of UNO in 1945, children were included in human rights agenda and various instruments for their protection. Like many countries in the world, Bangladesh formally focused its attention on children protection in the Constitution of Bangladesh and customary laws from the very beginning of its independence. But there is no special children justice law and no positive legislation having opportunities for physical, moral and intellectual development of children. After 42 years of liberation of Bangladesh, the law has not substantially been changed to protect children. Though the Children Act 1974 and the Children Rules 1976 are considered as the basic law for children justice, these are not comprehensive and in conformity with the Convention on the Rights of the Child (CRC) of 1989 and the other international standards. Consequently, children suffer adversely from existing laws. It is a great challenge to ensure the over-all improvement of the children justice system through a specific child-oriented law in Bangladesh.

In this context, the Government of Bangladesh passed of the Children Act 2013 on the basis of the CRC that Bangladesh ratified long ago (The Convention on the Rights of the Child (CRC) 1989 came into force on 2 September, 1990 in Bangladesh). However, in Bangladesh, the Children Act 2013 is a positive step and it is a great milestone for the protection of the rights of the child in all sphere of life. The numbers of vital issues on child rights have been dealt with in the Act. Furthermore, the Act recognizes some organizations and members and mentions about their responsibilities for protection of the best interest the children[1].

2.2 Salient Features of this Act

1. **Harmonized with the CRC:** The Children Act, 2013 is based on the CRC and has referred to the CRC in the preamble and replaced the Child Act 1974. As a result of this development, children in Bangladesh will have the opportunities to be treated fairly both under the national and international laws.
2. **Internationally recognized definition for a child:** Due to the differences in ages of children, they were denied fair justice. This discrepancy has been addressed in the Children Act, 2013. In the Act, the age of the child has been increased from 16 to 18 years. So, child age has been fixed up to 18 years.

[1] Ferdous DrN, "The Children Act 2013: A Milestone of Child Protection" The Daily Star (September 24, 2013)

3. **Protection of child victims and witnesses:** For the first time, the Act has a provision for child victims and witnesses cementing legal instruments for their protection, including compensation for victims. For children in conflict with the law, the law reinforces the importance of the children justice system meaning that children accused of petty crime, particularly children living on the streets will no longer be unnecessarily detained.
4. **Appointment of probation officer:** According to the Act, the government will appoint one or more Probation Officer/s in the district, Upazilla and metropolitan areas.
5. **Child help desks in the police station:** As per the Act, under the Ministry of Home Affairs, Child Help Desks will be formed in police stations all over the country. An officer, ranked sub-inspector or above, will look after the desk. The Act specifies responsibilities of the designated police officer.
6. **Child-friendly arrest procedure:** According to the Act, whatever the circumstance is, child aged below nine cannot be arrested. If a child above nine is being arrested, law enforcers cannot apply handcuffs and rope around waist to the child.
7. **Single charge sheet against children:** The Act specifies about submitting charge sheet against children. According to the Act, a single charge sheet consisting of adults and children cannot be submitted.
8. **Juvenile Court at district level:** According to the Act, at least one juvenile court will be formed in district or metropolitan area. If a case is filed against a child, whatever crimes s/he committed, the juvenile court will try him/her.
9. **Constitute National Child Welfare Board:** Under the Act, a National Child Welfare Board will be formed. The minster of the Ministry of Social Welfare will be the chairperson of the board. Boards at the district and Upazilla levels will also be formed. District Commissioner and Upazilla Nirbahi Officer (sub-district executive officer) will be the presidents of the boards respectively.
10. **Alternative preventive measures:** As per the Act, it states that the police officer or juvenile court can look for alternative preventive measures during any stages of the formal judicial system. It has also been mentioned in Act that there will be a monitoring process for checking, whether the directed alternative measures have any positive impact on the child's behavior.

11. **Provision of sentence:** The Act proposed for highest five years imprisonment and Taka one lakh fines for any cruelty on children as well as giving a guideline for bringing up the children in a conducive atmosphere.
12. **Responsibility of media:** Media is prohibited to publish articles, photographs and information that go against a child under trial in this Act.
13. **Well-being of the children:** This Act encourages family based care and protection considering best interest of the child and meaningful child participation.

2.3 Concerned authorities under The Children Act, 2013

The Children Act, 2013, outlines the roles and responsibilities of various concerned authorities involved in the protection and welfare of children in Bangladesh. These authorities play a critical role in the implementation of the Act and ensuring the well-being of children. Some of the key concerned authorities under the Children Act, 2013, include:

1. Children Affair Desk Office at Police Stations
2. Probation Officer
3. National Children Welfare Board
4. Children Welfare Board(District ,Upazilla Level)
5. Children Courts (In every district)
6. Social Welfare Department and Alternative care center
7. NGOs and Civil Society Organizations

Probation Officer

While provision for Probation Officers existed in the 1974 legislation, this new legislation provides for their appointment, responsibilities and duties in relation to children in greater detail. For example, the Probation Officer must assist both the police and the child when a child is brought to the police station. Duties of Probation Officers will include tracing the parents of the child and assessing the possibility of bail or for diversion of the child from the criminal justice system. At the Children's Court, their duties include remaining present throughout the trial, preparing a social inquiry report and ensuring legal representation for the child.

Establishment of Child Welfare Boards (National, District, Upazilla level)

At the national level, Child Welfare Boards must monitor, co-ordinate, review and evaluate the activities of institutions where children are deprived of their liberty, including providing guidance for rehabilitation and reintegration of children and collecting data on children in conflict with the law. However, district- and Upazilla-level Boards do not have any functions

dealing directly with children in conflict with the law, despite having a mandate to inspect prisons, making their role in regard to these children unclear.

Child-specialized police desk

This provision allows for the appointment of a CAPO with responsibilities such as maintaining separate registers for cases involving children, informing Probation Officers of cases involving children, informing a child's parents or guardians, providing support for the child, assessing their physical health needs, ensuring a child's age is determined correctly, and taking diversionary measures and assessing the opportunity for bail.

Children's Court

Under the 1974 Act, two juvenile Courts were established. The new law requires that at least one 'Children's Court' be established or appointed in each district headquarter and metropolitan area, which has the exclusive jurisdiction to deal with children in conflict or contact with the law. Child-friendly procedures, such as requiring lawyers, police or officials not to wear any professional or official uniform, are also included. The Children's Court is responsible for assessment and determination of the age of the child.

CHAPTER 3

Methodology

3.1 Research Aim

The aim of this field research is to investigate the role of concerned authorities prescribed in the Children Act, 2013, in Mymensingh District, Bangladesh. The study aims to gain a comprehensive understanding of how these authorities implement child protection measures and promote the rights and welfare of children in the region.

3.2 Research Approach

The research employs a mixed-methods approach that combines qualitative observations and structured interviews. This approach allows for a well-rounded understanding of the roles of authorities and their practical implementation under the Children Act, 2013.

3.3 Research Team

The research team comprises eight students who had previous experience in data collection techniques, ethical considerations, and maintaining consistency in data gathering.

3.4 Participants and Site Selection

We, a group of eight students from Department of Law and Justice, Jatiya Kabi Kazi Nazrul Islam University conducted this research. We visited key institutions responsible for child protection, which include two police stations' Child Affair desk, the Upazilla Probation Officer's office, and the District Probation Officer's office.

3.5 Data Collection Methods

1. **Direct Observations:** Direct observations were conducted during site visits to understand the physical settings, available resources, and overall working environment of the institutions. Notes were taken to document observations related to facilities, organizational structure, and any visible operational challenges.
2. **Structured Interviews:** Structured interviews were conducted with officials responsible for child-related affairs in each institution.Participants were asked about their roles, responsibilities, challenges, and perspectives on the Children Act, 2013. Interview responses were recorded (with consent) and summarized for analysis.

3.6 Ethical Considerations

a) **Informed Consent:** Prior informed consent were obtained from all participants before conducting interviews or administering the questionnaire.
b) **Anonymity and Confidentiality:** Participants' identities were kept confidential, and data were anonymized during analysis and reporting.
c) **Institutional Approval:** Necessary permissions were obtained from relevant authorities to conduct the field research.

3.7 Data Analysis

Comparative Analysis:

A comparative analysis were conducted to explore variations in roles, challenges, and practices across the different institutions visited: the Child Affair desk offices, Upazilla Probation Officer's office, and Zilla Probation Officer's office. By contrasting the information gathered from these distinct sources, we aim to identify patterns and differences that can provide a nuanced view of how the roles of authorities differ based on their specific contexts and responsibilities.

Integration of Findings:

Qualitative findings from both observations and interviews were integrated to form a comprehensive narrative. By combining insights from direct observations and participants' responses, we intended to create a holistic portrayal of the implementation of child protection measures. This integrated approach will allow us to present a well-rounded perspective on the roles and challenges faced by authorities under the Children Act, 2013.

3.8 Limitations

Scope Limitation:

The research is geographically limited to Mymensingh district, which may limit the extent to which findings can be generalized to other districts or regions. The unique characteristics and dynamics of Mymensingh may not fully represent the experiences of authorities across the entire nation.

Sampling Bias:

The study relies on interactions with officials from the selected institutions, which might introduce a sampling bias. Participants' willingness to engage and their particular perspectives could influence the data collected, potentially affecting the comprehensiveness of the findings.

Qualitative Nature of Data:

The qualitative nature of the data collected through observations and interviews may limit the depth of quantitative analysis. While qualitative data provide rich insights, they may not be easily quantifiable or suitable for statistical comparisons.

Potential Interviewee Bias:

Interviewees' positions and roles within their respective institutions might lead to biased responses. Their experiences and positions could shape their perspectives, potentially affecting the accuracy of the information shared.

Time and Resource Constraints:

Due to time and resource limitations, the research visits and interactions with authorities may not have covered all aspects comprehensively. Certain operational nuances or dynamics may not have been fully explored due to these constraints.

CHAPTER 4

Findings of This Study

4.1 Role of Prescribed authorities under Children Act, 2013: Law vs Reality

Under the Children Act of 2013, several authorities are designated to ensure the protection and well-being of children. These include the Probation Officer, Police Station Child Affairs Desk, National, District, and Upazilla Child Welfare Boards, and Child Development Centers. The Act outlines clear roles, duties, and responsibilities for these authorities. However, the unfortunate reality reveals a harsh and bitter contrast between these prescribed functions and the actual scenario on the ground.

In practice, the intended roles and responsibilities outlined in the Children Act often face significant challenges and discrepancies. Despite the Act's well-defined mandates, the execution of these duties falls short in many instances. This discrepancy arises due to a multitude of factors such as limited resources, inadequate training, cultural barriers, and systemic inefficiencies. As a result, the actual impact on safeguarding children's rights and well-being frequently deviates from the Act's intentions.

4.2 Probation officer

The Act provides that the Government shall appoint one or more Probation Officers in every district, Upazilla or metropolitan area and that[2], until such appointment, Probation Officers appointed under any other law shall continue to work as Probation Officers as if they had been appointed under the present law. Until the appointment of a Probation Officer, the Government may entrust Social Welfare Officers or any other officer of a similar rank working in the Department (i.e. the Department of Social Welfare or in any district or Upazilla under the Department) with the responsibilities of the Probation Officer. The 2013 Act gives details of the duties and Responsibilities of a Probation Officer in Section 6, including what they must do when any child, either in contact or conflict with the law, is brought or otherwise comes to the police station.

At the police stations: The Probation Officer has a duty to ascertain why the child has been brought to the police station, to meet the child and assure her/him that s/he will be provided with legal assistance, to communicate and co-ordinate with the police about the child's case or complaint, to trace the parents of the child concerned and to assist the police in communicating with them, to assess the possibility of bail for the child with the Child Affairs and Police Officers or, where applicable, to undertake a diversion process upon evaluating the background of the concerned case and, where diversion is not possible or the child is not released on bail, to arrange placement of the child in a safe home before s/he is produced in Court[3].

[2] Children Act 2013 (Bangladesh) s 5.
[3] Children Act 2013 (Bangladesh) s 6.

At the children's court: the Probation Officer must remain present in the Children's Court during the trial; support the child as far as possible; hold a field inquiry and prepare an inquiry report taking into consideration the conditions of the child and his surroundings and submit such a report to the Court; ensure legal representation for the child, including provision of legal aid through the District Legal Aid Committee (DLAC); and communicate, when necessary, with non-government legal aid organizations in order to ensure legal representation for the child[4].

At ACDC: Where a child in conflict with the law is sent to a Child development center or Certified Institute, it is the duty of the Probation Officer to prepare and preserve a separate file for the child, to follow the procedure for alternative care as provided in Section 84 of the Act, to meet the child at regular intervals and to see her/him according to her/his desired time, to monitor or observe that the parents, extended family members, or legal guardian properly comply with the conditions relating to the supervision of the child, to personally monitor whether or not the child is receiving formal and vocational education, to inform the Court of the child's behavior, effectiveness/efficacy of the measures taken in respect of the child, and to submit the report called for by the Court at regular intervals, to provide advice to the child with a view to making her/him sociable as far as possible and to render overall support for that purpose. The Probation Officer is to observe the conditions relating to diversion or alternative care and to carry out any other responsibilities that may be prescribed by Rules. Further duties of Probation Officers will be discussed below when dealing with newly enacted provisions relating to diversion, family group conferencing and alternative care systems.

Reality: In the context of our ongoing field research focused on the "Role of Prescribed Authorities under the Children Act, 2013" in Mymensingh District, we conducted visits to the offices of the District and Upazila Probation Officers. Our investigation delves into the operational dynamics and effectiveness of authorities designated by the Children Act, 2013, in ensuring child welfare and protection.

Overview of interview with Md. Asaduzzaman, District Probation Officer, Mymensingh District: It is unequivocally outlined within the Children Act, 2013, that the government is legally bound to appoint one or more officers in each district, Upazila, or Metropolitan area following the level of necessity. Our research, however, brought to light a disconcerting contrast between the legal stipulation and the actual situation in Mymensingh District. Despite an alarming caseload of almost 1300 cases involving children, at the District level, there is merely one designated officer. This discrepancy raises grave concerns regarding the ability to holistically address the diverse needs and rights of the children encompassed within the district's jurisdiction.

At the Upazila level, the role of the Probation Officer, as envisioned by the Act, often intertwines with the responsibilities of an existing Welfare Officer. This amalgamation of duties, although expedient in resource management, dilutes the distinct character of independent child affairs Probation Officers at the Upazila level. It engenders a scenario where

[4] Children Act 2013 (Bangladesh) s 6.

officers are compelled to strike a precarious balance between their primary responsibilities and the additional task of addressing intricate child-related concerns.

In line with the Children Act, of 2013, the role of the Probation Officer encompasses a spectrum of responsibilities. This includes providing assistance and guidance to children in conflict with the law, offering companionship during trials, arranging for legal representation when necessary, and diligently maintaining social inquiry reports. Moreover, they are entrusted with the task of assessing the viability of bail options, tracing the parents of the children, and collaborating closely with the police. However, the pragmatic reality diverges significantly from this envisioned ideal. The insufficient number of officers, coupled with a dearth of proper guidelines and rules outlined under the Act, financial constraints, challenges about accommodation for children, and inadequate resources for even necessities have collectively led to a role for the Probation Officer that is markedly different from the legal expectations.

4.3 Operations and responsibilities carried out by Probation officer in Mymensingh

1. **Assistance to Children in Conflict with Law**: The District Probation Officer extends support to children in conflict with the law, providing companionship, assurances, and guidance.
2. **Management of Children's Affairs and Sensitive Cases:** The office maintains detailed records concerning various children's affairs and adeptly handles sensitive matters, including child marriage, domestic violence against child marriage victims, rape, threats, eve teasing, and drug-related issues.
3. **Actions against Child Marriage:** The District Probation Officer takes robust measures to address cases of child marriage, ensuring appropriate actions are taken against parents involved in such practices.
4. **Support for Disadvantaged Children:** The office extends assistance to disadvantaged children by offering shelter and additional forms of support through development centers.
5. **Awareness Seminars:** The District Probation Officer actively participates in seminars aimed at disseminating awareness about children's rights and juvenile delinquency.
6. **Inter-Agency Coordination:** The office demonstrates effective coordination with other authorities prescribed under the Children Act, 2013, creating a collaborative environment to fulfill child protection objectives.
7. **Resilience against Influences:** Despite political and local power influences, the District Probation Officer remains committed to delivering justice to children, indicating a steadfast dedication to the Act's principles.

8. **Role in Legal Processes:** The Probation Officer plays a pivotal role in various legal processes, including diversion measures and court proceedings, contributing significantly to the juvenile justice system.

4.4 Challenges faced by the Probation Officer

The role of a Probation Officer in the context of child protection, as outlined by the Children Act, 2013, is undoubtedly pivotal. However, this role is not without its challenges. Throughout our field research, conducted within Mymensingh District, we identified several formidable obstacles that Probation Officers encounter while striving to fulfill their designated responsibilities:

9. **Insufficient Resources and Staffing:** One of the most pressing challenges faced by Probation Officers is the severe lack of resources and inadequate staffing. In a district like Mymensingh, where the caseload concerning children is substantial, the burden placed on a singular officer is immense. The dearth of human resources and financial provisions hampers their ability to provide effective support and care to each child in need.
10. **Ambiguities in Guidelines and Rules:** The Children Act, 2013, serves as the guiding framework for the roles and responsibilities of Probation Officers. However, the lack of comprehensive and specific guidelines can lead to ambiguity in interpreting and implementing their duties. The absence of detailed procedural protocols can hinder their decision-making and lead to inconsistent practices.
11. **Multifaceted Responsibilities:** The role of a Probation Officer encompasses a broad spectrum of responsibilities, ranging from providing assistance to children in conflict with the law to maintaining social inquiry reports and coordinating with various stakeholders. This multiplicity of duties can overwhelm officers, potentially diluting their effectiveness in each specific area.
12. **Financial Constraints:** The financial limitations faced by Probation Officers hinder their capacity to respond effectively to children's needs. This includes ensuring proper accommodation, and provide essential resources for children's well-being.
13. **Lack of Proper Facilities:** In instances where children need to be brought to safe homes or court hearings, the absence of appropriate facilities and conveyance poses a substantial challenge. The lack of dedicated spaces for children's temporary stay, coupled with difficulties in arranging transportation, can hinder their swift access to justice and safety.
14. **Coordination and Collaboration:** The role of Probation Officers necessitates close collaboration with various entities, including police, child welfare boards, and social workers. In practice, however, fragmented communication and coordination between these stakeholders can lead to delays, inefficiencies, and hindered information sharing.

15. **Limited Training and Professional Development:** Probation Officers require specialized training to effectively handle the intricacies of their role. The absence of regular training programs and opportunities for professional development can impede their ability to stay updated with evolving best practices and legal developments.
16. **Local Power and Political Influence:** The presence of local power dynamics and political influence poses a significant challenge for Probation Officers. Political interference, nepotism, and favoritism can impact decision-making, resource allocation, and the autonomy of officers. This influence can compromise impartiality, hinder effective resource utilization, and lead to inconsistent implementation of child protection measures. Probation Officers might face pressure to align decisions with political interests, impairing their ability to prioritize the best interests of children.

In conclusion, while the role of Probation Officers under the Children Act, 2013, is of paramount importance in ensuring child welfare and protection, the challenges they face are substantial. Addressing these challenges requires a concerted effort, including improved resource allocation, clearer guidelines, enhanced training, and strengthened coordination among relevant stakeholders. By addressing these hurdles, the Probation Officers can more effectively fulfill their critical role in safeguarding the rights and well-being of children.

4.5 Child Affair Desk at Police Station

Section 13, giving the responsibility to the Ministry of Home Affairs for the establishment of a "Child Affairs Desk" headed by a "Child Affairs Police Officer" (CAPO), not below the rank of Sub-Inspector[5]. It is also provided that if there is a female Sub-Inspector working in the concerned police station, she shall be given priority while assigning responsibilities of the Child Affairs Desk. The responsibilities and functions of CAPO's are to maintain separate files and registers for cases involving children; where any child is brought to the police station, to inform the Probation Officer; to inform the child's parents or, in their absence, their foster carer, guardian or member of the extended family and to notify them of the date for producing the child before the Court along with other details of the case; to provide immediate mental support for the child; to arrange for her/his first aid and, if necessary, to send the child to a clinic or hospital; to take necessary measures to meet the basic needs of the child.

The CAPO is to also observe whether the age of the child is being determined correctly and whether when determining the age the certificate of birth registration or other reliable documents which are relevant for the purpose are taken into consideration.In the absence of a birth certificate, a school certificate or the date of birth given at the time of admission in school or other relevant document may be considered.

Under Section 48, it is the duty of the CAPO upon consulting with the Probation Officer regarding the allegation brought against the child, to take diversionary measures and assess the possibility of bail;[6] to send a report to the Police Head Quarters containing all information

[5] Children Act 2013 (Bangladesh) s 13.
[6] Children Act 2013 (Bangladesh) s 48.

concerning the case relating to the child and also to send a similar report to the Probation Officer and the District Legal Aid Committee.

Including a child in the same charge sheet as an adult offender is prohibited by Section 15 of the Act. So, if an adult and a child are alleged to have committed an offence together, there shall be separate charge sheets, one for the adult and one for the child[7]. Consequently, there will be separate trials, one for the child and one for the adult. But according to Section 17(2) of the Act, both the trials will take place in the Children's Court on the same day or date, one after the other[8]. Other duties of the police and CAPO will be discussed later when dealing with provisions relating to diversion and alternative care.

Reality: The Children Act, 2013, forms the bedrock of children's rights and welfare within the legal framework. This study focuses on the implementation of this Act by analyzing the roles of authorities in two distinct police stations - Kotowali Model Police Station and Trishal Police Station. The research investigates the level of adherence to the Act's mandates, particularly in handling child contracts with the law and children in conflict with the law. Furthermore, the study examines the challenges faced by these authorities in executing their duties under the Act.

The structured interview were conducted with the child affair officer (CAPO) in both Kotowali Model Police Station and Trishal Police Station, regarded as representative cases**.** The Child affair officer of Kotowali Model thana is **Sub-inspector Shammi** and child affair officer of Trishal Model Thana is **Assistant Sub-inspector Shirin Akter.**

The real scenario we observed and came to know are as follows:

a) **Welcoming Environment:** Both police stations exhibited a positive and cooperative approach, extending warm hospitality and unwavering support during the structured interviews, underscoring their enthusiasm to contribute to the study's objectives.
b) **Designated Desks:** Both stations established dedicated offices for Woman and Child Affairs, showcasing a proactive stance in addressing cases pertaining to children's welfare.
c) **Role-Specific Officers:** Conforming to the Children Act, 2013, both police stations appointed officers specializing in child affairs, with a specific focus on child contracts with the law and children in conflict with the law.
d) **Gender Priority:** The appointment of female officers as Child Affairs Officers adhered to the Children Act, 2013's mandate of prioritizing female personnel for these roles.
e) **Active Involvement:** While Trishal Police Station featured an Assistant Sub-Inspector, Kotowali Police Station boasted an actively engaged female officer, indicating a deeper engagement in child-related matters.
f) **Legal Adherence:** Both police stations exhibited meticulous adherence to legal protocols during arrest and post-arrest processes, aligning with the principles laid out in the Children Act, 2013.

[7] Children Act 2013 (Bangladesh) s 15.
[8] Children Act 2013 (Bangladesh) s 17(2).

g) **Basic Necessities:** Both stations underscored the importance of providing fundamental necessities such as food and, when required, accommodations that aligned with the Act's stipulations, including provisions for safe housing.
h) **Monitoring Progress:** A significant aspect involved the utilization of diversion procedures, which encompassed vigilant observation of children's progress. Separate documentation was maintained for this purpose, with periodic reports sent to the District Probation Officer.

4.6 Challenges Faced by Children Affair Desk

a) **Absence of Designated Officer:** At Trishal Police Station, the absence of a designated child affairs officer led to an interview with an assistant sub-inspector, indicating potential gaps in consistent expertise and specialized handling of child-related cases.
b) **Logistical Challenges:** Both Kotowali Model Police Station and Trishal Police Station encountered logistical challenges in transporting children to legal venues, safe houses, and development centers, underlining the difficulties in ensuring seamless transitions for children in conflict with the law.
c) **Financial Burden:** The responsibility of providing food during transit and accommodation for children posed a financial burden on both stations, potentially diverting resources from other essential functions.
d) **External Influences and Threats:** The prevalence of political and local influences, as well as threats, added a layer of complexity to handling child affairs cases, potentially compromising the impartial execution of the Children Act, 2013.
e) **Lack of Technical Expertise:** Notably, the absence of technical experts to address the needs of special advantage, handicapped, or physically disabled children presented a challenge, underscoring the need for specialized assistance in managing cases involving such children.

4.7 Role of Children Court in Mymensngh District:

The 1974 Act provided for the establishment of 'Juvenile Courts' to deal with children in conflict with the law (so–called 'youthful offenders'). There were only two Children Courts established under the 1974 Act, which other regular Courts were designated to function as Juvenile Courts when hearing cases involving 'youthful offenders'. The 2013 Act provides that, for the purpose of the Act and for trial of offences thereunder, at least one Court is to be established in every district headquarter and in every metropolitan area, as the case may be, to be called a Children's Court. Pursuant to Section 16(1), the Ministry of Law and Justice, in consultation with the Supreme Court, is mandated to declare, by notification in the official Gazette, one or more Court of Additional Sessions Judge in a district or metropolitan area, as the case may be, as the Children's Court. If there is no Additional Sessions Judge in any district then the District and Sessions Judge shall discharge her on the responsibilities of a Children's Court in addition to her/his own responsibilities.

Currently, **in Mymensingh, the Nari O Shishu Nirjatan Daman Tribunal and the Court of Additional Sessions Judge have been tasked with handling cases related to children's affairs in Mymensingh district**. Unfortunately, this arrangement has resulted in a considerable workload for these courts due to the sheer number of cases involving children, with the total count reaching approximately 1300 cases.

The absence of a specialized children's court has exacerbated the situation, placing significant strain on the already limited judicial resources available.

One of the major repercussions of this situation is the adverse impact on the expeditious delivery of justice. The overload of cases has led to delays in proceedings, which directly affects the rights and well-being of the children involved. Furthermore, the absence of a dedicated court means that judges handling these cases may not have the specialized training and expertise necessary to deal with the unique legal and emotional aspects of children's issues.

The primary reason behind this challenge is the shortage of judges within our judicial system. This scarcity hampers the effective distribution of cases and, in turn, impedes the prompt resolution of matters related to children. To ensure a fair and efficient justice system, it is imperative that steps be taken to address this issue. The establishment of a dedicated children's court in Mymensingh district would help alleviate the workload of existing courts and contribute to a swifter dispensation of justice in children-related cases.

4.8 Child Development Center in Mymensingh

The government's responsibility to establish and maintain necessary Child Development Centers (CDCs), as stipulated in the Children Act of 2013, is essential for the accommodation, reformation, and development of children in detention or undergoing trial. Presently, there are three CDCs established, with two located in Gazipur and one in Jessore. However, this number remains significantly inadequate to meet the needs and demands of the situation.

It is observed that gender disaggregation is considered in the establishment of CDCs, with Tongi and Jessore catering to boys and Konabari serving as a center for girls. Despite this consideration, the low number of CDCs available raises concerns about their capacity to accommodate and rehabilitate children effectively.***There is an absence of government-established CDCs in Mymensingh***, leaving a noticeable gap in the geographic coverage.

The existing limitations in CDC availability necessitate the referral of children in conflict with the law to the existing centers located in Tongi, Jessore, and Konabari. This practice, while functioning as an interim solution, may not fully address the individualized needs of each child or ensure their comprehensive development and reformation.

It is recommended that the government addresses the current inadequacy in CDC availability, especially in regions like Mymensingh where no government-established CDC exists. Furthermore, the government should consider establishing additional CDCs in a manner that ensures equitable access for all children, regardless of their location or circumstances.

This proactive approach will not only improve the accommodation and reformation of children in detention or undergoing trial but also contribute to a more just and holistic juvenile justice system. Consequently, the government should formulate comprehensive rules, guidelines, and notifications to guide the establishment, operation, and maintenance of CDCs, thereby facilitating the well-being and development of these vulnerable children as mandated by the Children Act of 2013.

Although there are three Child Development Centers in Bangladesh, there are various challenges associated with these centers.

a. **Inadequate Resources and Logistics:** CDCs lack sufficient resources to provide proper care, education, and other essential needs for the children residing there.
b. **Insufficient Training Facilities**: The lack of proper training facilities hinders the holistic development of the children in CDCs.
c. **Physical Conditions and Atmosphere:** The physical environment within CDCs is subpar, affecting the well-being and mental health of the children.
d. **Reports of Abuse:** There have been instances of physical and mental abuse of children within CDCs, which raises concerns about their safety and well-being.
e. **Lack of Clear Guidelines:** The absence of clear guidelines for implementing alternative care methods leaves room for improper and inconsistent treatment of children.
f. **Overcrowding:** CDCs are often overcrowded, leading to inadequate living conditions and a lack of personal space for children.
g. **Insufficient Educational Facilities:** The educational opportunities provided within CDCs are limited, with most children not having access to education beyond the primary level.
h. **Limited Budget:** The allocated budget for inmates in CDCs is insufficient to provide proper nutrition, clothing, medical care, and educational resources.
i. **Restricted Communication with Parents:** Children are allowed limited communication with their parents, with only two meetings a month, infringing upon their fundamental rights.
j. **Violation of Fundamental Rights:** The poor conditions, lack of resources, and restricted communication with parents contribute to the violation of children's fundamental rights.
k. **Need for More CDCs:** The existing number of CDCs is not sufficient to accommodate the needs of all the children, leading to overcrowding and inadequate care.
l. **Implementation of Children Act:** There is a need to ensure the effective implementation of the Children Act to protect the rights and well-being of children in CDCs.

Case Study-1

Background:

A 15-year-old girl belonging from a family with a distinguished reputation. Despite her family's esteemed background and her own aspirations as a dedicated ninth-grade student, her life trajectory was altered dramatically through an early and forced marriage arrangement.

Challenges Faced:

Upon entering into marriage, the girl encountered an array of formidable tragedy, including domestic violence, emotional distress, and the abrupt discontinuation of her education, a result of her husband's coercive actions. Her promising academic journey was unexpectedly truncated.

Intervention by Children Affairs Helpline and Probation Officer:

Realizing the urgency of her predicament, the girl exhibited immense courage by reaching out to the Children Affairs Helpline, seeking intervention to liberate herself from her dire circumstances. The subsequent involvement of a diligent probation officer, entrusted with safeguarding children's rights and welfare, played a pivotal role in her case.

Actions Taken:

Despite facing threats and external pressures, the probation officer displayed unwavering commitment to upholding the girl's rights. Employing assertive measures, the probation officer mandated that the girl's husband cease all efforts to hinder her education. Furthermore, in order to secure her safety and ensure uninterrupted access to education, it was determined that she would temporarily reside with her parents until reaching the age of 18.

Outcomes:

The resolute actions undertaken by the probation officer precipitated transformative outcomes. The girl's rights were acknowledged and affirmed, and her education was reinstated as a paramount priority. The probation officer's determined intervention not only shielded her immediate well-being but also forged a pathway towards a more promising and empowered future.

Case Study-1

Background:

A young boy and girl found themselves entangled in a relationship that transcended their age. Despite their mutual affection and shared aspirations, their families were determined to maintain traditional values.

Forced Marriage and False Accusations:

Upon learning about the relationship, the girl's family arranged a forced marriage for her, thereby committing an offense of child marriage. When the boy and girl chose to escape together, the girl's family filed a false case against the boy's family, further escalating the situation.

Escalation of the Conflict:

The legal accusations led to a chain reaction that entangled the families of both the boy and the girl. The boy's family, now facing legal challenges, encountered unforeseen trouble. The girl, despite her circumstances, was rejected by her own family and left in a vulnerable situation.

Intervention of the Probation Officer:

Recognizing the complexity and gravity of the situation, the girl sought help from the probation officer of Mymensingh district. The probation officer, charged with safeguarding the welfare and rights of children, played a pivotal role in addressing this multifaceted crisis.

Actions Taken:

The probation officer responded swiftly by providing the girl a safe house. Moreover, the officer initiated legal actions against the girl's family, addressing the false accusations and protecting her rights.

Outcomes:

The probation officer's intervention led to transformative outcomes. The girl's safety was ensured, and she was provided with a supportive environment. Legal actions against her family emphasized the importance of safeguarding children's rights and deterring false accusations.

CHAPTER 5

Conclusion

5.1 Summary of the Findings

The field research focused on the "Role of Prescribed Authorities under the Children Act, 2013" in Mymensingh District revealed significant insights into the operational dynamics and effectiveness of authorities responsible for child welfare and protection. The study investigated the implementation of the Children Act, 2013, and the challenges faced by key concerned authorities, including Probation Officers, Child Affairs Desks at police stations, and Child Development Centers (CDCs).

At the District and Upazila levels, the study highlighted the discrepancy between the legal stipulation and the actual situation regarding the number of designated officers. Despite a high caseload involving children, there is a lack of adequate resources, staff, and proper guidelines for these officers. This leads to challenges in providing comprehensive support, guidance, and legal representation to children in conflict with the law. Challenges like insufficient resources, ambiguous guidelines, multifaceted responsibilities, and local power influences have hindered the ideal execution of the Probation Officer's role.

The Child Affairs Desks at police stations were found to have a welcoming environment and role-specific officers. However, logistical challenges, financial burdens, and external influences presented obstacles to their effective functioning. The absence of a specialized Children's Court in Mymensingh District has led to delays in proceedings, impacting children's rights and well-being. The study recommended establishing a dedicated children's court to address this issue.

The Child Development Centers (CDCs) face challenges such as inadequate resources, insufficient training facilities, subpar physical conditions, and reports of abuse. Limited access to education, restricted communication with parents, and violations of children's fundamental rights were also observed. The need for more CDCs and proper implementation of the Children Act was emphasized.

In conclusion, the research underscores the vital role of prescribed authorities under the Children Act, 2013, in safeguarding the rights and well-being of children. While various authorities are making efforts, the study highlights the challenges they face and the need for improved resource allocation, clear guidelines, training, and collaboration among authorities. Addressing these challenges is crucial for creating a comprehensive child protection system that ensures the holistic development and well-being of children in Mymensingh District.

5.2 Recommendations

Based on the comprehensive analysis provided in your research, here are some recommendations to address the challenges and improve the situation concerning the role of prescribed authorities under the Children Act, 2013, in Mymensingh District:

1. **Formulation of comprehensive Rules:** Although, The Children act, 2013 is a comprehensive law regarding children contract with law and conflict with law, there is necessity to formulate a complete rules and the government should publish the rules in official gazette and direct the concerned authorities to discharge duties and responsibilities accordance to that rule.
2. **Expansion of budget and Resources Allocation:** The government should increase the budget allocation for child welfare services.
3. **Recruiting dedicated and additional probation officer:** The government should recruit and train additional Probation Officers to reduce their caseload and ensure better coverage of child welfare cases and provide adequate financial resources to Probation Officers to meet the basic needs of children in their care.
4. **Professional and Technical Training:** Regular and specialized training programs for all personnel involved in child welfare and protection to enhance their skills, knowledge, and understanding of child rights and best practices must be ensured.
5. **Establishment of more Child Development Center:** The government should establish more specialized Child Development Centers (CDCs) in areas with high caseloads, ensuring that each center is equipped with proper resources for education, healthcare, and mental well-being and provide specialized facilities to cater to the needs of differently-abled children within CDCs and other institutions.
6. **Strengthening the coordination and collaboration:** The prescribed concerned authorities should strengthen inter-agency coordination and collaboration between Probation Officers, Child Affairs Police Officers (CAPOs), social workers, child welfare boards, and other relevant stakeholders.
7. **Arrangement for regular meetings and communication channels** to ensure efficient information sharing and joint efforts to protect children's rights must be ensured.
8. **Dedicated Children Court in every District / Metropolitan Area:** Giving grave importance to the Children Act, 2013, government should establish dedicated Children's Courts in Mymensingh District to handle cases related to children in conflict with the law, ensuring prompt and specialized justice delivery and provide specialized

training for judges and court personnel dealing with children's cases to ensure a child-friendly and rights-based approach.

9. **Evaluation and Regular Monitoring by Welfare Board:** Implementing mechanisms to monitor and evaluate the performance of Probation Officers, CAPOs, and other authorities in fulfilling their roles under the Children Act, 2013, should be evaluated by the National children welfare Board.
10. **Child Friendly Environment:** Child-friendly environments within police stations, CDCs, and courtrooms, ensuring that children's rights are respected throughout the legal process should be ensured and authorities must ensure the provision of psychological support and counseling services for children to mitigate trauma and stress during legal proceedings.
11. **Awareness Programs:** The Children Welfare board (Upazilla,District and National level) should regular conduct awareness campaigns and seminars to educate the public, including parents, teachers, law enforcement agencies, and community members, about child rights, protection, and the Children Act, 2013.
12. **Utilization of technology** to improve data management and reporting processes, facilitating efficient tracking of cases and monitoring of children's progress must be adopted.
13. **Making Recommendation by concerned authorities and formulating effective policy by National Child Welfare Board**

Implementing these recommendations requires a collaborative effort from government bodies, non-governmental organizations, legal professionals, law enforcement agencies, and civil society. By addressing the challenges and shortcomings identified in your research, the authorities can work towards ensuring a more robust and effective child protection system in Mymensingh District, aligned with the principles and objectives of the Children Act, 2013.

Bibliography

1. Justice I. Ali , “The Children Act 2013: A Commentary by Justice Imman Ali ” (2014) 1 Penal Reform International and BLAST
2. Ferdous Dr N, “The Children Act 2013: A Milestone of Child Protection” The Daily Star (September 24, 2013)
3. BANU W, “Challenges to Implementation of Laws for Children” (*The Financial Express*, January 26, 2019)
4. Ferdousi, N. (2015). Deprive Children in the Development Centers, The Daily Star, and 27 April, 2015. https://www.thedailystar.net/law-our-rights/de prived-children-the-development-centers-78343 Development Centers, The Daily Star, and 27 April, 2015.
5. Mohajan, H. (2014). Child Rights in Bangladesh, Journal of Social Welfare and Human Rights, 2(1), pp. 207-238.
6. “Amendment of Children Act Sent to Cabinet” (Rising BD, February 19, 2018) <https://www.risingbd.com/english/Amendment-of-Children-Act-sent-to-cabinet/51755> accessed August 13, 2023
7. “Child Protection in Bangladesh: A Legal Framework” (Lawyersclubbangladesh.com , 2020)<http://lawyersclubbangladesh.com/en/2020/12/21/child-protection-in-bangladesh-a-legal-framework/> accessed August 13, 2023
8. Hoque, M Enamul, Best Interest of the Children, Academic Press and Publishers Library, Dhaka. 2009: 18.
9. Ali, M. Imman, Towards a Justice Delivery System for Children in Bangladesh: A Guide and Case Law on Children in Conflict with the Law, UNICEF Bangladesh. 2010: 26.
10. Bangladesh Government official gazette notifications under the Ministry Law Justice and Parliamentary Affairs, 24 April 2014
11. Convention on the Rights of the Child (1989) CRC
12. Children Act 2013 (Bangladesh) .